

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 03/16/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN DEPARTMENT 34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://contracosta-courts-ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhIdz09>

Meeting ID: 161 108 5023
Passcode: 869677

Law & Motion

1. 9:00 AM CASE NUMBER: C24-01538
CASE NAME: FULLER PROPERTIES, LLC VS. SEQUOIA EQUITIES, INC.
*HEARING ON MOTION FOR DISCOVERY A PROTECTIVE ORDER, TO STAY ALL WRITTEN DISCOVERY, AND FOR THE ISSUANCE OF A CASE MANAGEMENT ORDER. FILED BY SEQUOIA EQUITIES, INC.
FILED BY:
TENTATIVE RULING:

Defendants Sequoia Equities, Inc. and Alder Creek Management, Inc. ("Defendants") filed a Motion for Protective Order and Stay All Written Discovery and for the Issuance of a Case Management Order on June 26, 2025 (the "Motion for a Protective Order and Other Relief"). The Motion for a Protective Order

and Other Relief was initially set for hearing on October 6, 2025. The motion is opposed.

On October 6, 2025, the Court ordered the parties to meet and confer and file a Joint Statement by October 10, 2025 and continued the motion to October 20, 2025. A Joint Statement was filed by the parties on October 10, 2025. That statement indicated that the parties had met and conferred and that “[b]ased on those discussions the parties need a little more time to review and discuss the issues in the hope of reaching an agreement next week.” Subsequent filings in mid-October 2025 indicated that the meet and confer had not resolved the issue.

On October 20, 2025, the Motion for a Protective Order and Other Relief was continued to November 10, 2025. Thereafter, the motion was continued a couple of times to later dates (December 8, 2025 and February 2, 2026) before ultimately being re-set for hearing on March 16, 2026.

As the Court observed in its tentative ruling for the February 2, 2026 hearing date, the Court had trailed the Motion for a Protective Order and Other Relief several times to new court dates pending the adjudication of a motion to consolidate set to be heard in a related class action matter. As discussed below, that motion was denied and the Court moves forward with adjudicating this pending motion.

Background

The current operative complaint is the Second Amended Complaint filed December 23, 2025 (“SAC”). The plaintiffs under the TAC are Fuller Properties, LLC and 21 other entities (“Plaintiffs”).

The TAC alleges seven causes of action against the Defendants, including Breach of Fiduciary Duty, Fraud and Intentional Misrepresentation, Breach of Contract, Negligent Interference with Prospective Economic Advantage, Broker's Constructive Fraud, Declaratory Relief, and Accounting.

The alleged claims arise out of the Defendants’ obligations to the Plaintiffs under written management contracts for leasing and property management of apartment buildings owned by the Plaintiffs and Defendants’ alleged breaches of duties as agents for Plaintiffs. Plaintiffs allege the Defendants mismanaged the Plaintiffs’ apartment buildings, failed to account for rental and other proceeds from the properties, and made misrepresentations to Plaintiffs in managing their properties, among other claims. See SAC ¶¶43-52. They allege that among the breaches or wrongdoing by Defendants was the mishandling of tenant security deposits which resulted in a class action lawsuit (Contra Costa County Superior Court Case No. C23-02401) being filed against the Plaintiffs (the “Class Action”). See SAC ¶50. Recently, a motion to consolidate this case with the Class Action was denied.

Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402. On the other hand, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. §

2017.020(a).

A party may also seek a protective order regarding discovery requests propounded on the party. See Code Civ. Proc. §§ 2030.090 (interrogatories), 2031.060 (inspection demands) and 2033.080 (requests for admissions). A court, for good cause shown, may make any order that justice requires to protect any party from unwarranted annoyance, embarrassment, oppression, or undue burden and expense. *Id.* at §§ 2030.090(b), 2031.060(b) and 2033.080(b).

Here, the matter involves a wide scope of claims touching upon a large number of properties and the leases and property management relating to thousands of tenancies. See Declaration of David Davidson filed June 26, 2025, ¶13 *et seq.* At present, no less than seventy-seven (77) discovery requests have been propounded by Plaintiffs and are at issue in the present motion (the “Discovery Requests”). *Id.* at ¶13. The management of discovery in this case is complicated by the fact that “voluminous and costly discovery has already taken place” in the related Class Action. *Id.* at ¶17. That matter appears to be settling which may also impact the scope of discovery necessary or, at the very least, inform the manner in which discovery proceeds.

It is evident to the Court that the fundamental point of Defendants’ motion—that discovery needs to be carefully case managed in this case—is well taken. The Court finds that doing so is necessary to avoid undue burden and expense and to efficiently handle the voluminous discovery. Moreover, the Court appreciates that production of a vast number of tenant files and related information also presents challenges for the adequate management and protection of third-party private information, including the personal information of tenants.

The Court concludes that the best route to ensure careful monitoring and structuring of discovery is through the appointment of a discovery referee. The Court finds, in its discretion, that such an appointment is necessary. The Court finds that there are multiple issues to be resolved simultaneously across a large number of Discovery Requests and that the complexity of such issues require a discovery reference to avoid the inordinate consumption of time by the Court.

Accordingly, the Court finds good cause to issue a Protective Order regarding the Discovery Requests and to appoint a discovery referee as follows:

1. The Court orders the appointment of a discovery referee (the “Discovery Referee”) herein, pursuant to Code of Civil Procedure section 639 and 640.
2. The Discovery Requests need not be answered until a coordinated discovery plan is put in place with the assistance of the Discovery Referee.
3. The Discovery Referee shall, in consultation with the parties, make such directives as reasonably necessary to (a) streamline and consolidate the written discovery answers/responses, (b) facilitate an orderly and efficient production of discoverable information and documents and (c) otherwise structure the discovery process.
4. Costs of the Discovery Referee shall be apportioned equally among the parties, except that the costs attributable to any discovery related motion or contested proceeding shall be subject to reallocation in the discretion of the Discovery Referee. However, the Discovery Referee may make such directives are necessary and appropriate for the shifting of the costs of discovery.

Sanctions

Lastly, the Court considers monetary sanctions against Plaintiffs as the non-prevailing parties. See Code Civ. Proc. §§ 2030.090(d), 2031.060(h) and 2033.080(d) (court shall impose a monetary sanction against

any party, person, or attorney who unsuccessfully makes or opposes a motion for a protective order unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.).

Plaintiffs engaged in substantial efforts to meet and confer efforts to resolve the matter. See Declaration of Michael W. Rupprecht filed September 22, 2025 as part of Opposition, ¶19 *et seq.* and Declaration of Michael W. Rupprecht filed October 16, 2025, ¶2 *et seq.* Moreover, Plaintiffs' opposition rested on principled and substantial arguments, although ultimately the Court was persuaded to largely grant the motion as set forth herein.

Accordingly, the Court finds that Plaintiffs acted with substantial justification and the Court DENIES sanctions.

Disposition

The Court finds and rules as follows:

1. The Motion for a Protective Order and Other Relief is GRANTED IN PART and DENIED IN PART, as set forth above. Any affirmative relief requested and not addressed herein is DENIED.
2. The parties shall meet and confer within fourteen (14) days on (a) selection of the Discovery Referee and (b) a form of Discovery Referee appointment order.
3. If the parties do not agree on the person to be appointed as the Discovery Referee, the parties shall submit to the Court up to three nominees for appointment and the Court shall appoint the Discovery Referee pursuant to Code of Civil Procedure section 640(b). A single joint submittal by email to Department 34 shall set forth the parties' respective nominees and attach the proposed form of Discovery Referee appointment order. Such submittal shall be made within twenty-one (21) days of notice of entry of this order.
4. Plaintiffs' motion to compel responses to the Discovery Requests filed October 30, 2025 and set for hearing on May 4, 2026 is STRICKEN and the hearing date VACATED in light of the Court's ruling herein. The Discovery Referee shall oversee the process for responses to such Discovery Requests consistent with the provisions of this order.
5. The Court shall issue the order after hearing.

2. 9:00 AM CASE NUMBER: C24-01939
CASE NAME: NICKOLAI POPOV VS. ALEXANDER POPOV
***HEARING ON MOTION IN RE: STAY - CONTINUED FROM 1/26/26**
FILED BY:
TENTATIVE RULING:

Defendant Alexander Popov ("Defendant Popov") filed a Motion to Stay ("Motion to Stay") in this matter on July 31, 2026. The Motion to Stay was initially set for hearing on November 10, 2025.

As noted in a prior tentative ruling, at a hearing on August 4, 2025, the Court continued this motion until after the probate hearing regarding the administrator of the Estate of Nickolai Popov on August 25, 2025, in a related Probate matter, Case No. P25-00516 (the "Probate Case"), and ordered additional briefing.